

Additional security under Supply Code para 4.20 — writ dismissed as infructuous

High Court of Judicature at Allahabad · Division Bench · 12 September 2016 · WRIT - C No. 37209 of 2011 · **Writ dismissed as infructuous; para 4.20 additional-security demand not decided.**

HEADNOTE

A writ to quash a 30 May 2011 additional-security demand under para 4.20 of the U.P. Electricity Supply Code, 2005 was listed with similar matters and, following an earlier interim in Vehlina Steels, the respondents were restrained from demanding additional security until further orders, without prejudice. On the petitioner's later statement the petition was dismissed as infructuous, without deciding clause 4.20 or the demand.

FACTUAL SUMMARY

M/s Shree Gopala Iron (India) Pvt. Ltd. challenged a 30 May 2011 demand notice of Paschimanchal Vidyut Vitran Nigam seeking additional security under para 4.20 of the U.P. Electricity Supply Code, 2005. On 11 July 2011 the Allahabad High Court listed the writ with similar 2009 matters, including an earlier interim in Vehlina Steels, and restrained the respondents from demanding additional security until further orders, without prejudice. On 12 September 2016 counsel stated the writ had become infructuous.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ challenging a demand for additional security under para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed as infructuous on the petitioner's statement. The 2011 without-prejudice interim restraining additional-security demand, and the listing with similar matters, did not decide clause 4.20 or the validity of the 30 May 2011 notice. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ADDITIONAL SECURITY COULD BE DEMANDED UNDER PARA 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005, AND WHETHER THE DEMAND NOTICE DATED 30 MAY 2011 WAS VALID

Petition dismissed as infructuous; the 2011 restraint was without prejudice and did not decide the clause. ¶ 2

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s. Vehlina Steels & Alloys Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.</i> Writ Petition No. 30582 of 2009, order dated 23 June 2009			1	Referred

